



POLICE DEPARTMENT

October 2, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Fredelinda Pena
Tax Registry No. 942911
World Trade Center Command
Disciplinary Case No. 2014-12537

The above-named member of the Department appeared before the Court on May 4 and June 11, 2015, charged with the following:

1. Police Officer Fredelinda Pena, assigned to the World Trade Center Command, on or about May 13, 2014, while on-duty and in New York County, acted in a discourteous manner toward Sergeant Nelson Fernandez after Sergeant Fernandez asked Police Officer Pena why she had not proceeded to her assigned post after Roll Call.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL

2. Police Officer Fredelinda Pena, assigned to the World Trade Center Command, on or about May 15, 2014, while on-duty and in New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Police Officer Pena failed and/or refused to accept a written notification to appear at the Counterterrorism Bureau Investigations Unit.

P.G. 211-05, Page 4, Paragraph 19-20 – PROCESSING NOTIFICATIONS TO APPEAR
AT COURTS AND OTHER GOVERNMENT
AGENCIES

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

3. Police Officer Fredelinda Pena, assigned to the World Trade Center Command, on or about June 1, 2014, while on-duty and in New York County, failed to immediately and/or directly proceed to her post, to wit: after Roll Call, Police Officer Pena visited a Starbucks Coffee shop and consumed food and/or drink while therein.

P.G. 202-21, Page 1, Paragraph 2 – POLICE OFFICER

4. Police Officer Fredelinda Pena, assigned to the World Trade Center Command, on two occasions on or about and between February 19, 2014, and June 5, 2014 while on-duty and in New York County, reported late to Roll Call.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

P.G. 203-03, Page 1, Paragraph 3 – COMPLIANCE WITH ORDERS

The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office. Respondent was represented by Robert N. Felix, Esq.

Respondent pleaded Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

FINDINGS AND ANALYSIS

Respondent has been assigned to the World Trade Center Command (WTCC) since July 2011. One of the prime missions of WTCC is to protect the World Trade Center site and its environs from terrorism while keeping it open to visitors, tenants, and vendors.

At trial, Respondent claimed that she was singled out within the command after a television news report was released in May 2014 showing officers from WTCC looking at their cell phones while on duty at various posts located in high-visibility areas of the site. In an attempt to bolster this argument, Respondent testified to a number of incidents and interactions that occurred with fellow police officers and supervisors in the command between April and July 2014.

Respondent currently has a pending Department Equal Employment Opportunity case as well as one with the federal Equal Employment Opportunity Commission (Tr. 146, 148-49). She filed the Department EEO complaint on May 13, 2014, after the interaction detailed in the discussion of Specification No. 1. She noted a later comment by a supervisor that indicated his knowledge of the complaint by May 30, 2014, at the latest.

Specification No. 1

Respondent is charged with acting in a discourteous manner toward Sergeant Nelson Fernandez when he asked her why she had not proceeded to her assigned post after roll call. Fernandez testified that on May 13, 2014, at approximately 0715 hours, he conducted roll call inside WTCC at 19 Varick Street. Respondent was assigned to a post at the corner of Liberty and Greenwich Streets. At approximately 0720 hours, after the completion of roll call, Fernandez exited the building and stood outside on the sidewalk. He testified that it was his practice to stand outside the command after roll call to make sure all the officers proceeded to their assignments (Tr. 19-23).

At approximately 0740 hours, Fernandez said, he observed Respondent exit the building and walk toward the Franklin Street subway station to get to her post. This was permitted, but it did not account for the 20-minute interval. Fernandez called to Respondent three times, his voice getting louder each time, before she turned around and started walking back toward him. He asked Respondent why she was still there. Respondent angrily replied that she had "female issues." Fernandez raised his left hand and said, "No problem, proceed to post" (Tr. 19-24, 37, 39).

Fernandez said that Respondent resumed toward the subway station, but returned shortly thereafter and asked to speak to Fernandez. He replied by asking, "Officer Pena, what's the problem now?" Respondent then said very loudly, "Sergeant Fernandez, you don't fucking talk to me this way." Fernandez described Respondent as very angry and irate, and admitted that his own "demeanor was a little heightened" during the interaction. Fernandez then said, "I don't know who you think you're talking to." He advised her to turn around and head to her post (Tr. 24-27).

According to Fernandez, Respondent said, "I'm fucking tired of people . . . picking on me at this command. . . . I'm fucking tired of this damn place." Fernandez told her that he did not know what she was talking about and only was interested in what was happening right then. He ordered her to head to her post immediately (Tr. 26-27).

Fernandez noticed that Respondent saw Sergeant Luis Rojas, the patrol supervisor, exiting the building and asked Rojas if she could speak to him. Rojas told Respondent that she could not speak to him because she had just received an order from Fernandez to go to her post. Fernandez added that if she did not go to her post at that moment, "you're not going to like my next step," i.e., she would be suspended. Respondent then walked toward the subway station to go to her post (Tr. 26-27, 40).

Rojas testified that at 0740 hours, he was looking for Fernandez and found him outside the command arguing with Respondent. Both appeared upset. Respondent was speaking loudly and flailing her arms. Rojas quickly closed the door to the building to give them some space, but within a few seconds he decided it would be better for them not to argue like that on a public sidewalk. When he opened the door again, Fernandez and Respondent were approaching. Fernandez ordered Respondent to go to her post. Respondent then asked Rojas if she could speak with him, but he replied that Fernandez had given her an order to go to her post. At that point, Respondent turned around and left (Tr. 56-58, 60, 65-66).

Respondent testified that after roll call on May 13, 2014, she went to the locker room to readjust her bulletproof vest because her breasts were tender and the straps on her vest were bothering her. Afterward, she left the command and began walking toward the subway station to take the train to go to her post for the day. Fernandez was standing outside the command with some other officers, and yelled at her, "Pena, go to post." She responded, "Sarge, I'm going to go to post," and continued walking toward the train station (Tr. 153).

Fernandez called her back to where he was standing and asked, "What were you doing in the locker room? Why are you not on post?" She explained that she was "taking care of female matters," in an attempt to be discreet. Fernandez got very angry and started screaming and cursing at her, so she decided to walk away. But as she was going down the stairs to enter the subway, she changed her mind and asked to speak to Fernandez. She said, "[L]isten, I really appreciate if you don't speak to me like that." Fernandez kept screaming and cursing at her. Respondent then noticed Rojas and asked him if she could speak to him. Rojas told her to go to post. Fernandez added that she had "better go to post because you are not going to like what's going to happen to you." Respondent decided to let it go and went to her post (Tr. 153-55).

Respondent also presented the testimony of Police Officer Michael Smertiuk, the former Equal Employment Opportunity liaison at WTCC. Smertiuk testified that Respondent approached him in his capacity as liaison and told him about her interaction with Fernandez. She complained that she was being repeatedly and unfairly assigned the same undesirable posts. Smertiuk contacted the Department EEO office on Respondent's behalf on May 13, 2014 (Tr. 116-18; RX B, EEO's report of Respondent's inquiry). There was no further evidence about the results of the EEO inquiry, if any.

Police Officer Christopher Delbroccolo, a Patrolmen's Benevolent Association delegate at WTCC, testified that Respondent contacted him and told him that Fernandez had yelled and cursed at her as she exited the command. Respondent expressed an interest in obtaining video footage from the camera outside the command as proof of the incident, but Delbroccolo told her that she would have to contact a PBA attorney to get that done. Respondent also complained that she was being treated unfairly based on her assigned posts (Tr. 133-35, 137-38, 140-41).

Delbroccolo stated that he was approached by a supervisor and told that several supervisors were looking to have Respondent transferred. Delbroccolo contacted Respondent

and told her that she should consider submitting her own transfer paperwork because a transfer at her supervisors' initiative otherwise would look bad on her record (Tr. 136-37, 140).

This Court credits the testimony of Fernandez and found him to be a straightforward and credible witness. He admitted to becoming annoyed during the confrontation with Respondent, as was to be expected. On the other hand, Respondent's testimony was self-serving and incredible. According to Respondent, she spoke politely to Fernandez and he began screaming and cursing at her. While Rojas did not testify to the content of the conversation between Respondent and Fernandez, he testified that Respondent was speaking loudly and flailing her arms, which is consistent with Fernandez's version of events.

There were several other parts of Respondent's testimony that made no sense. She claimed that when she went back from the subway entrance to speak to Fernandez, the first thing he asked her was why she was in the locker room. Yet he should have had no idea at that point that she was in the locker room; she only told him after that supposed question she was taking care of a "female problem." It suggests that Respondent was tailoring her testimony to make Fernandez seem like a complete lout. Moreover, her characterization of him as vociferously angry that she was taking care of a personal "female" issue just was not credible.

Respondent apparently did not like the manner in which Fernandez spoke to her, but in a paramilitary organization like the Department, supervisors are not required to speak politely to their subordinates. Accordingly, the Court finds that Respondent acted discourteously to Fernandez and, is therefore, found Guilty of Specification No. 1.

Specification No. 2

Respondent is charged here with refusing to accept a written notification to appear for her official Department interview concerning the interaction with Fernandez. The interview was

scheduled for May 15, 2014. Sergeant Gabriel Oliveras testified that on that date, the integrity control officer instructed him to issue a notification to Respondent to appear at the interview. Oliveras went to the female locker room and knocked on the door. Respondent answered the door and exited the locker room. Oliveras then handed Respondent the notification. Respondent took the notification, looked at it, appeared to read it, and handed it back to Oliveras. She told Oliveras that she refused to accept the notification without representation from a delegate. Oliveras told her that she did not need representation from a delegate to accept the notification, but Respondent refused and went back into the locker room (Tr. 67-72, 74-76).

Respondent testified that Oliveras handed her a notification and told her to sign it. She asked Oliveras what the notification was about and he again told her to sign it. She did not have the opportunity to read the notification. She asked if it could be presented in front of a delegate and Oliveras took the notification and left. The following day, Respondent was called into the commanding officer's office and signed the notification (Tr. 161-62).

Respondent testified that she felt uncomfortable that Oliveras had come to the women's locker room to give her the notification because notifications usually were handed out at roll call. She also testified that she felt she needed a delegate because she was uncomfortable in a one-on-one situation with a supervisor based on past experiences and "didn't have a clear understanding of what the document was about." According to Respondent, she was entitled to ask for a delegate because his role is to act as a liaison between officers and supervisors (Tr. 161, 195, 211-14).

Oliveras testified that the member of the service receiving the notification is required to sign it to acknowledge receipt (Tr. 81). In an analogous situation, Patrol Guide § 211-05 (19) states that a member must "[s]ign and promptly return" to a supervisor or supervisor's delegate a

copy of a notification for court or court-related appearances outside the Department. Thus, failing or refusing to accept a notification of this kind encompasses failing to sign it as required.

Respondent's claim that she did not have an opportunity to read the notification, but was nonetheless so uncomfortable accepting it from Oliveras that she felt she needed a delegate present, was not credible. The notification could have been for any number of routine appearances that members of the service must make, such as the Traffic Violations Bureau or District Attorney's Office. Respondent's misguided belief that she is entitled to the presence of a delegate whenever she does not have a clear understanding of something occurring is wrong as a matter of law and does not constitute a defense for her failure to accept the notification and sign it when instructed to do so.

Finally, Respondent wrongfully implied that Oliveras did something improper by knocking on the women's locker room door and waiting outside. Patrol Guide § 203-05 (15) contemplates that Department members may need to be present in locker rooms or other similar spaces used by persons of the opposite sex. The member is to announce his presence before entering. Oliveras apparently did not even intend to enter but still complied with the gist of the procedure by knocking first. He committed no misconduct.

In sum, Respondent is found Guilty of Specification No. 2.

Specification No. 3

The third specification charges Respondent with failing to report directly to post after roll call by stopping at Starbucks, sitting down, and eating and drinking. Sergeant Frank Chiodi was a supervisor at WTCC. On June 1, 2014, he worked the second platoon and was present at roll call to see Respondent assigned to a post at Albany and Greenwich Streets. Chiodi saw Respondent leave the command at 0725 hours (Tr. 86, 88-89).

Chiodi took care of some administrative functions and at approximately 0745 hours proceeded to his post at Washington and Albany Streets. He stopped at a Starbucks to get a cup of coffee on the way to his post. While on line, he saw Respondent sitting at a table eating and drinking. Respondent then got up from where she was sitting, threw away her garbage and quickly exited the Starbucks (Tr. 89-91).

Around 0830 hours, Chiodi inspected Respondent at her post. He asked to see her activity log and asked why she had been in Starbucks earlier. Respondent told Chiodi that she had not eaten well the night before and had just stopped to get something to eat. Chiodi then asked Respondent if she had made any entries in her activity log (RX A) to which she replied no. Chiodi inspected Respondent's memo book and indicated that no violations had occurred. Chiodi testified, nonetheless, that officers are not permitted to take personal breaks a mere twenty minutes after the completion of roll call (Tr. 90-91).

Respondent claimed that she was the first officer to get to post. She arrived at 0800 hours. After Chiodi signed her book, she contended, he told her that he did not think WTCC was the right place for her and suggested that she apply for a position in the Community Affairs Bureau. "You like to interact with people, you seem to be nice to people, you like the community." Respondent was offended by this. She told Chiodi that he was "trying to burt" her and questioned, "How come you don't recommend me to Community Affairs if you think I am such a good candidate for it."

Respondent asserted that Chiodi became very angry and told her that she was not getting his "message." He took her activity log back and wrote in it that he instructed her on the "proper procedure" to respond to her assigned post after roll call and for proper activity log entries (RX A). Respondent asked Chiodi why and he responded by saying, "I am trying to let you know.

You don't seem to get it." He told her that he was going to put her in the minor violations log and left her post (Tr. 180-81).

On cross examination, Chiodi conceded that he had spoken with Respondent in the past about her interest in Community Affairs, but could not recall if it was on this particular day. He also acknowledged that he put in her in the minor violations log for not responding to her post upon completion of roll call and for having omitted activity log entries, particularly concerning her personal (Tr. 96-97).

Respondent defended against the charge by saying that she merely stopped at Starbucks to pick up a drink on her way to her post and claiming that she was being singled out for doing something that was common practice. Chiodi conceded that as a supervisor, he had no problem with officers taking a few minutes to pick up something on their way to their assigned posts. Respondent, however, was sitting down at a table eating and drinking more than 25 minutes after roll call had ended. Respondent acknowledged that roll call ended at approximately 0720 hours. She arrived on post at 0800 hours (Tr. 108, 202-03). If Respondent truly had just picked up a drink at Starbucks on the way to her post, it should have taken her less than 40 minutes to arrive on post. Thus the tribunal finds Chiodi's account credible. Respondent abused the courtesy of making a quick stop before going to post and therefore is found Guilty of the third specification.

Specification No. 4

Respondent is charged with reporting late to roll call on February 19 and June 5, 2014. At trial, Respondent admitted that she was late to roll call on those days, but claimed that other officers were also late and they were not put in the minor violations log (DX 1). Not only is Respondent's argument that she was being singled out for being late not a defense, her argument is disproved by the entries in the minor violations log itself, on which other officers are listed for

being late for roll call. In fact, Respondent was one of two officers listed in the log for being late on the June date (Tr. 183, 204). As such, she is found Guilty.

Defense of Retaliation

Respondent claims that the charges and specifications brought against her in this case are the result of retaliatory motives on the part of her supervisors at WTCC after the TV report showed footage of her using her cell phone while on duty, and after she filed an EEO complaint against Fernandez on May 13, 2014.

The New York City Human Rights Law prohibits retaliation in response to filing an EEO complaint. Retaliation is defined as an act “reasonably likely to deter a person from engaging in protected activity.” See Administrative Code § 8-107 (7); Fincher v. Depository Trust & Clearing Corp., 604 F.3d 712, 723 (2d Cir. 2010); Williams v. New York City Hous. Auth., 61 A.D.3d 62, 71 (1st Dept. 2009).

The standards used by the federal and state courts for resolving discrimination cases are instructive here. To establish a prima facie case of retaliation, it must be shown that: (1) the employee engaged in a protected activity; (2) the employer was aware of the activity; (3) the employer took adverse action against the employee; (4) and a causal connection exists between the protected activity and the adverse action. (5) If a prima facie case is established, the burden shifts to the employer to show a legitimate, non-retaliatory reason for the adverse action. See LaFond v. General Physics Servs. Corp., 50 F.3d 165, 172-73 (2d Cir. 1995); Jute v. Hamilton Sundstrand Corp., 420 F.3d 166, 173 (2d Cir. 2005); Zakrzewska v. The New School, 14 N.Y.3d 469, 479 (2010). An employer must contend that its reason for the adverse action was “neutral” as to any inference of discrimination. See Massie v. Metropolitan Museum of Art, 2010 U.S. Dist. Lexis 101243, *36 (S.D.N.Y., Aug. 17, 2010).

(6) If the employer contends that its action was motivated by a reason other than the protected activity, the burden shifts back to the employee to prove that the articulated reason was a pretext for retaliation. See DeMarco v. Holy Cross High School, 4 F.3d 166, 170 (2d Cir. 1993). Under the New York City Human Rights Law, the employee also can show that the employer's action was motivated at least in part by an impermissible motive. See Russo v. New York Presbyt. Hosp., 972 F. Supp. 2d 429, 456 (E.D.N.Y. 2013); Brightman v. Prison Health Serv., Inc., 108 A.D.3d 739, 741 (2d Dept. 2013).

(1)(3) Protected Activity and Adverse Action

Respondent engaged in a protected activity on May 13, 2014, when she contacted Smertiuk and made an EEO complaint against Fernandez. Respondent, however, also claims that she began experiencing problems within the command and was singled out after the news report, which occurred prior to the EEO complaint. Respondent has no basis for a retaliation claim based on her involvement in the news report. Only the incidents which occurred after May 13, 2014 – disciplinary action taken against Respondent for refusing to accept the notification on May 15, 2014; being put in the minor violations log on June 1, 2014, for not reporting directly to her post and omitted memo book entries; and being put in the minor violations log on June 5, 2014, for being late to roll call – can be considered in determining whether or not Respondent was retaliated against.

(2) Awareness of the Complaint

At trial, Fernandez admitted that he had been told by someone in the command that Respondent had filed an EEO complaint against him, but denied knowing that she had filed a federal EEOC claim against the Department. Respondent testified that on May 30, 2014, Chiodi

made a comment during roll call about people bringing EEO and EEOC into the command, despite not having told him about the complaint she made. Chiodi did not recall making such a comment. There was no testimony as to whether he knew that Respondent had filed an EEO complaint against Fernandez, but he denied knowing that Respondent had filed an EEOC claim against the Department (Tr. 34, 52, 98, 172). There was no other testimony at trial as to whether or not other supervisors within the command knew about Respondent's EEO complaint against Fernandez. It therefore can be concluded that at least one of Respondent's supervisors knew that she had filed an EEO complaint, at the latest by May 30, 2014.

(4) Causal Connection

An employee can show a causal connection by demonstrating that the protected activity: (a) was followed closely in time by discriminatory treatment; (b) that others who engaged in similar conduct as the employee were treated disparately, or; (c) direct evidence of retaliatory animus. DeCintio v. Westchester County Med. Ctr., 821 F.2d 111, 115 (2d Cir. 1987).

When temporal proximity between the protected activity and the adverse action is used as circumstantial evidence of causality, the intervening time period must be "very close." Clark County School Dist. v. Breeden, 532 U.S. 268, 273 (2001). A two-month period has been determined to be the "dividing line" beyond which a temporal relationship becomes too attenuated to demonstrate causality. See Ruhling v. Tribune Co., 2007 U.S. Dist. Lexis 116, **72 (E.D.N.Y., Jan. 3, 2007); Cunningham v. Consolidated Edison Inc., 2006 U.S. Dist. Lexis 22482, *55 (E.D.N.Y., Mar. 28, 2006). Respondent filed an EEO complaint against Fernandez on May 13, 2014. The incidents on May 15, June 1, and June 5, 2014, are well within the two-month period to demonstrate causality for purposes of a prima facie case.

(5)(6) Burden Shifting

Because Respondent established a prima facie case of retaliation, the Department must demonstrate that its reasons for taking the questioned actions were not a pretext for discrimination. The Court finds that the Department succeeded in doing so.

There was tension in the command following the TV report showing officers engrossed in their cell phones while on duty in WTCC posts. Though the faces of the officers depicted in the news story were blurred out, Respondent admitted that based on her post the day the footage was taken, she was one of the officers that appeared in the video footage (Tr. 149).

Here, Respondent's unsupported argument that she was being singled out failed to prove pretext. Cf. Baum v. City of Rockland, 337 F. Supp. 2d 454, 472 (S.D.N.Y. 2004) (plaintiff's opinion about the quality of her work did not make employer's disagreement retaliatory, and the evidence demonstrated that employer had reasonable concerns). None of the disciplinary actions here strike the Court as actions that would not have occurred to other, similarly situated officers.

In fact, as noted supra, several other officers in the same page of the minor violations log admitted at trial were cited for being late to work. Refusals to accept notifications for official interviews or detail assignments commonly are charged as disciplinary offenses. See, e.g., Case No. 2010-2707 (Jan. 18, 2012) (failing to comply with two superior officers by refusing to sign notification for a Headquarters Security detail); *Case Nos. 2002-78443, 2004-79589, 2004-80484 & 2005-80806*, pp. 16-17 (Jan. 10, 2006) (failing to sign notification for official interview); *Case No. 2004-79629*, pp. 8-9 (Apr. 18, 2005) (failing to sign notification of squad change from Auxiliary Police coordinator with flexible tours to patrol on third platoon). Improper personal breaks have been charged as well. See, e.g., Case No. 2011-3810, pp. 17-18 (July 18, 2012) (failing to notify supervisor that he was taking stomach-related personal at stationhouse after being assigned to prisoner transport); *Case No. 2000-76117*, pp. 7, 11 (July 16,

2002) (leaving post without proper relief or necessity, and then omitting memo book entries concerning location of personals).

Conclusion

Accordingly, this Court finds that Respondent failed to demonstrate that the disciplinary actions taken against her were pretexts for retaliation, or even that retaliation was a motivating factor in the actions.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 10, 2007. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

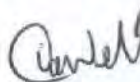
Discourtesy to supervisors is not taken lightly in this paramilitary organization. A course of several acts of discourtesy, disobedience, and lack of adherence to Department regulations routinely leads to penalties of dismissal probation if not termination. The Department's recommendation here of 25 vacation days is thus fair if not merciful. See Case No. 2011-5653 (June 20, 2012) (20-year officer with one prior adjudication forfeited 25 vacation days for failing to comply with an order and being discourteous to a sergeant). Accordingly, the Court recommends that Respondent forfeit 25 vacation days as a penalty.

APPROVED

NOV 18 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER FREDELINDA PENA
TAX REGISTRY NO. 942911
DISCIPLINARY CASE NO. 2014-12537

Respondent received an overall rating of 3.0 “Competent” on her 2014 annual performance evaluation and 3.5 “Highly Competent/Competent” on her 2012 and 2013 annual performance evaluations. [REDACTED]

[REDACTED] She has no formal disciplinary history.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner – Trials